



CHAPTER civ.

An Act to authorise the Tees Valley Water Board to
construct additional waterworks to extend the limits
of supply of the Board to make better provision
with regard to their water undertaking and for other
purposes. A.D. 1914.
[31st July 1914.]

WHEREAS under the provisions of the Tees Valley Water
(Consolidation) Act 1907 (hereinafter referred to as "the
Act of 1907") the Tees Valley Water Board (hereinafter
referred to as "the Board") are authorised to supply and
do supply water within the boroughs of Stockton-on-Tees
Middlesbrough and Thornaby-on-Tees and other places in the
neighbourhood specified in the Second Schedule to the Act
of 1907:

And whereas by section 21 of the Act of 1907 the Board
were authorised and required to complete and thereafter main-
tain the works mentioned in Part II. of the Third Schedule
to that Act subject as in the said section provided:

And whereas it is expedient to extend the time limited by
section 22 of the Act of 1907 for the completion of Conduits
Nos. 9 and 10 mentioned in Part II. of the said Third
Schedule:

And whereas it is expedient that the Board be empowered
to make and maintain the additional waterworks and other
works hereinafter described:

And whereas it is expedient that the limits of the Board
for the supply of water should be extended so as to include the
area hereinafter described and that the Board should be

A.D. 1914. — empowered to supply water and the powers and provisions of the Act of 1907 should be in force within such extended limits:

And whereas by section 68 of the Act of 1907 the Board are authorised subject as therein provided to sell surplus water in bulk to Walker Maynard and Company Limited or other the owners for the time being of the Redcar Ironworks and the Coatham Ironworks and it is expedient to amend the provisions of the said section limiting the amount of water which may be so supplied:

And whereas by section 61 of the Act of 1907 provision is made in regard to the charges to be made by the Board for water supplied to certain large consumers under which provision a reduction in such charges would take effect on the thirty-first day of December one thousand nine hundred and fourteen but having regard to the annual charge on the rates of the boroughs of Stockton-on-Tees Middlesbrough and Thornaby-on-Tees on account of the water undertaking it is expedient that such reduction be postponed for a period of five years and that at the expiration of that period the said charges should again be brought under review:

And whereas after allowing for the unexhausted borrowing powers of the corporations of Stockton-on-Tees Middlesbrough and Thornaby-on-Tees for the purposes of the said works estimates have been prepared showing that the following sums will be required (namely):—

	£
For purchase of lands - - - - -	2,350
For the completion of reservoirs and works connected therewith already authorised and the construction of the reservoir by this Act authorised - - - - -	37,001
For the completion of conduits already authorised and the construction of the deviation conduit and the other conduits by this Act authorised -	39,496
For workshops and workmen's houses - - -	7,800
	£86,647

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient to empower the said corporations to borrow for the above purposes the several sums next hereinafter mentioned (that is to say):—

	£
In the case of the corporation of Stockton-on-Tees	36,103
In the case of the corporation of Middlesbrough -	43,324
In the case of the corporation of Thornaby-on-Tees	7,220
	£86,647

And whereas it is expedient that the other powers in this Act mentioned should be conferred on the Board:

And whereas plans and sections showing the lines situations and levels of the waterworks and works by this Act authorised and books of reference containing the names of the owners or reputed owners lessees or reputed lessees and occupiers of the lands required or which may be taken for the purposes of such waterworks and works or under the powers of this Act were duly deposited with the clerk of the peace for the county of Durham and the clerk of the peace for the north riding of the county of York respectively and are in this Act respectively referred to as the deposited plans sections and books of reference:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Tees Valley Water Act 1914. Short title.

2. The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845; Incorporation of general Acts.

The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner
“ or reputed owner of any such house or of the
“ agent of such owner” in section 44 of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be

A.D. 1914.
—

received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof;

are hereby (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) incorporated with this Act Provided that in the said provisions of the Railways Clauses Consolidation Act 1845 for the purposes of this Act "the railway" means the works by this Act authorised "the centre of the railway" means the boundaries of the reservoir and the centres of the conduits respectively and "the Company" means the Board.

Interpreta-
tion.

3. In this Act unless the context otherwise requires—

"The Board" means the Tees Valley Water Board;

"The Act of 1907" means the Tees Valley Water (Consolidation) Act 1907;

"Conduit No. 9" and "Conduit No. 10" mean respectively Conduits Nos. 9 and 10 mentioned in Part II. of the Third Schedule to the Act of 1907 and authorised by section 21 of that Act to be completed;

"The waterworks undertaking" or "the undertaking" means the waterworks and all lands buildings and property of every description and all rights and privileges belonging to vested in or held by or on behalf of the Board.

Words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have in this Act unless it is otherwise provided or the context otherwise requires the same respective meanings.

Power to
make works.

4. Subject to the provisions of this Act the Board may make and maintain in the lines or situation and according to the levels shown on the deposited plans and sections the works hereinafter described in the county of Durham and in the north riding of the county of York and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose.

The works hereinbefore referred to and authorised by this Act are— A.D. 1914.

Work No. 1 A deviation (deviation conduit) of the line and level of part of Conduit No. 9 consisting of one or more conduits aqueducts or lines of pipes commencing in the parish and urban district of Barnard Castle at a point on that conduit two miles seven furlongs two chains or thereabouts measured along the centre line of that conduit from the commencement thereof and terminating in the parish of Westwick in the rural district of Barnard Castle at a point four miles seven furlongs and nine chains or thereabouts from the commencement of that conduit:

Work No. 2 A service reservoir (to be called the Nunthorpe Reservoir) situate wholly in the parish of Ormesby in the rural district of Middlesbrough in the north riding of the county of York and forming the eastern corner of the enclosure numbered 59 on the $\frac{1}{2500}$ Ordnance map 1894 of the said parish:

Work No. 3 A conduit or line or lines of pipes commencing at a point in the highway between Normanby and Ormesby at the junction of the Normanby Road and High Street Normanby in the parish of Normanby in the urban district of Southbank-in-Normanby in the north riding of the county of York and terminating in the parish of Ormesby in the rural district of Middlesbrough in the north riding of the county of York at the service reservoir hereinbefore described:

Work No. 4 A conduit or line or lines of pipes situate wholly in the parish of Ormesby in the rural district of Middlesbrough in the north riding of the county of York commencing at the said service reservoir and terminating at the southern end of the stream in Crow Wood numbered 49 on the aforesaid Ordnance sheet:

Work No. 5 A conduit or line or lines of pipes situate wholly in the parish of Ormesby commencing at the before-mentioned service reservoir and terminating in the highway known as Ormesby Bank at its junction with Flats Lane.

In addition to the foregoing works the Board may upon the said lands make and maintain all such cuts channels

A.D. 1914. catchwaters tunnels adits pipes conduits culverts drains sluices
 byewashes shafts bores water towers overflows waste-water
 channels gauges filter beds tanks banks walls bridges embank-
 ments piers approaches engines machinery and appliances as may
 be necessary or convenient in connection with or subsidiary to
 the before-mentioned works or any or either of them but nothing
 in this section shall exonerate the Board from any action
 indictment or other proceeding for nuisance in the event of any
 nuisance being caused or permitted by them.

Limits of
 deviation.

5. In the construction of the works by this Act authorised the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the reservoir three feet upwards and five feet downwards and in the case of other works three feet upwards and ten feet downwards Provided as follows (that is to say):--

The Board shall not construct any embankment or wall of such reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition:

Except for the purpose of crossing over a stream or a railway no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections:

In crossing any railway any conduit may at the option of the owner or owners of such railway be carried under the railway in a culvert or over the railway by means of a bridge.

Period for
 completion
 of works.

6.—(1) If the deviation conduit by this Act authorised is not completed by the thirty-first day of December one thousand nine hundred and sixteen then the powers by this Act granted to the Board for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

(2) If the other works by this Act authorised are not completed within five years from the passing of this Act then on

the expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. A.D. 1914.

7. The powers of the Board for the compulsory purchase of lands for the purposes of the deviation conduit by this Act authorised shall cease on the thirty-first day of December one thousand nine hundred and sixteen and for other the purposes of this Act at the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

8. The time limited by section 22 of the Act of 1907 for the completion of Conduit No. 9 and Conduit No. 10 is (except so far as relates to that portion of Conduit No. 9 which lies between the commencement and termination of the deviation conduit by this Act authorised) hereby extended until the thirty-first day of December one thousand nine hundred and sixteen. Extension of time for completion of works.

9. From and after the passing of this Act the limits for the supply of water by the Board shall be extended so as to include— Extension of limits for supply of water.

So much of the parishes or townships of Ormesby Marton and West Acklam in the rural district of Middlesbrough Morton and Newton in the rural district of Guisborough Great Ayton Little Ayton-with-Turnstall Kirby Nunthorpe and Stokesley in the rural district of Stokesley all in the north riding of the county of York as is coloured red on the plan signed in triplicate by the Honourable Allen Benjamin Bathurst the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred and of which copies have been deposited in the Private Bill Office of the House of Commons in the Office of the Clerk of the Parliaments House of Lords and in the office of the Board:

And the Board shall have and may exercise within the said limits as extended all and the like powers privileges and authorities for and in relation to the supply of water and shall be subject to all and the like duties liabilities and obligations in respect thereof as they have may exercise and are subject to within the present limits for the supply of water by the Board and the provisions of the Act of 1907 and of this Act shall extend and apply accordingly throughout the limits of supply.

A.D. 1914.

Scheduled
agreement
confirmed

10.—(1) The agreement made the ninth day of April one thousand nine hundred and fourteen between Arthur John Dorman of the one part and the Board of the other part set forth in the Schedule to this Act is hereby confirmed and made binding on the parties thereto.

(2) As from the date of the vesting in the Board of the water pipes valves hydrants meters and other waterworks to be transferred to them under the said agreement the same shall form part of the water undertaking of the Board and may be maintained and used by the Board in connection with any of the waterworks comprised in the said undertaking and for the purposes of any part thereof and the provisions of the Act of 1907 and of this Act shall so far as they are applicable extend and apply to the said works.

For protec-
tion of
North East-
ern Railway
Company.

11. The following provisions for the protection of the North Eastern Railway Company (hereinafter called "the railway company") shall unless with the previous consent of the railway company in writing under their common seal apply and have effect:—

- (1) All mains and pipes laid or proposed to be laid by the Board under the powers of this Act over under or along any railway of the railway company shall if they are carried over the railway be so carried that the bottom of any such main or pipe or the girder carrying the same shall in no case be nearer the top of the rails of the railway than fifteen feet six inches and if they are carried under the railway shall be carried in a culvert or culverts of sufficient dimensions to admit of such mains or pipes being relaid or repaired without interference with the railway the top of any such culvert in no case being nearer the bottom of the rails of the railway than three feet and in laying and maintaining any mains pipes culverts or other works upon along or across or under any work or property of the railway company the Board shall execute the work under the direction and superintendence and to the reasonable satisfaction of the engineer of the railway company and in accordance with plans drawings and specifications previously submitted to and approved by him and shall pay and make good to the railway

company all loss damages and expenses which the said railway company shall sustain or be put to by or in consequence of the laying maintenance or user of the said mains pipes culverts and other works or by or in consequence of the bursting of or any other accident to any main pipe or reservoir of the Board or otherwise howsoever :

- (2) If at any time it is found necessary in order to enable the railway company to carry out any alterations or extensions of their railway or works that the position of such mains pipes or culverts shall be altered the Board shall on receiving notice in writing from the railway company so to do alter the position of the same so far as may be necessary to enable the railway company to carry out such alterations or extensions and the provisions of this section shall apply to the said mains pipes or culverts in their altered position :
- (3) In case of any difference between the Board and the railway company or their respective engineers touching the meaning or effect of this section or in relation to anything done or to be done under its provisions the same shall be determined by a single arbitrator to be appointed in case of difference by the Board of Trade :
- (4) Provided always that nothing in this Act contained shall enable the Board in any way to interfere with any station station house engine shed warehouse shop or other building or with any water pipe well or other works of the railway company without their consent in writing first had and obtained :
- (5) The provisions contained in section 91 (As to rating of railways &c.) of the Act of 1907 shall be incorporated with and form part of this Act and shall apply to any borough rate or rate in the nature of a borough rate or any increase of any such rate made levied or effected for the purposes of this Act.

12. For the protection of the county council of the north riding of Yorkshire (in this section referred to as "the county council") the following provisions shall unless otherwise agreed

For protec-
tion of
North
Riding
County
Council,

A.D. 1914. in writing between the county council and the Board apply and have effect (that is to say):—

- (1) Nothing in this Act or done thereunder shall in any way limit or affect the powers of the county council to rebuild alter widen or repair the structure of any bridge upon which any work shall be constructed under the powers of this Act or impose upon the county council any liability which was not by law imposed upon them at the date of the passing of this Act:
- (2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any mains pipes or apparatus of the Board they shall prior to the commencement of such works give to the Board one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Board of water it is in the opinion of the county council necessary that mains pipes and apparatus belonging to the Board should be removed temporarily from such bridge then the Board shall (and they are hereby authorised so to do) at their own expense remove such mains pipes and apparatus and carry the same temporarily across such bridge at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council:
- (3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Board shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out:
- (4) If any dispute arises between the county council and the Board with regard to this section the same shall be determined by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

13. Section 68 (Power of Board to sell surplus water in bulk to Walker Maynard and Company) of the Act of 1907 shall be read and construed as though in lieu of the words "two million gallons" wherever those words occur the words "five million gallons" had been substituted in the said section.

A.D. 1914.

—
Increase of
supply to
Walker
Maynard and
Company.

14. From and after the passing of this Act section 61 (Supply to large consumers) of the Act of 1907 shall so far as it relates to the supply of water for trade manufacturing or railway purposes to consumers of not less than five million gallons per quarter year be repealed and for supplies as aforesaid the Board shall for a period of six years from the thirty-first day of December one thousand nine hundred and thirteen be entitled to charge at a rate not exceeding four pence and a farthing per thousand gallons to a consumer within any of the boroughs of Stockton-on-Tees Middlesbrough and Thornaby-on-Tees and at a rate not exceeding four pence and three farthings per thousand gallons to a consumer outside the said boroughs and after that date the charge for supplies as aforesaid shall unless otherwise agreed be at a rate of four pence per thousand gallons to consumers within any of the said boroughs and four pence halfpenny to a consumer outside the said boroughs.

Supply to
large con-
sumers.

15. The Board may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of the Act of 1907 as extended by this Act to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any local authority company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic or other purposes within the limits of the Act of 1907 as extended by this Act Provided also that nothing in this section shall authorise the Board to lay any mains or pipes beyond the limits of the Act of 1907 as extended by this Act:

Contracts
for supply-
ing water in
bulk.

Provided also that no water shall be supplied under the powers of this section outside or for use or distribution outside (A) the area within which the corporation of Darlington has for

A.D. 1914. — the time being statutory power to supply water (B) the portions of the parishes of Greatham and Seaton in the county of Durham (within the area of supply of the Hartlepool Gas and Water Company) and (c) the portion of the parishes of Kirk-leatham and Coatham in the north riding of the county of York each of which areas is coloured green on the plan signed in triplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and of which copies have been deposited in the Private Bill Office of the House of Commons in the Parliament Office of the House of Lords and in the office of the Board :

Provided also that the exercise by the Board of the powers conferred by this section shall be subject to the section of this Act whereof the marginal note is "For protection of Darlington Corporation."

Report of quantities of water supplied in bulk.

16. The Board shall at least once in every month make a report of the quantities of water in each week supplied by the Board under the powers contained in the section of this Act whereof the marginal note is "Contracts for supplying water in bulk" and of the names of the local authorities companies and persons to whom such supplies have been given and shall forthwith deliver copies to the waterworks engineer of the mayor aldermen and burgesses of the borough of Darlington the clerk or secretary appointed by the riparian owners pursuant to section 48 of the Act of 1907 and the clerk to the Board of Conservators of the Tees Fishery District respectively.

If the Board at any time make default in delivering any such report they shall for every such offence be liable to a penalty not exceeding forty shillings which may be sued for and recovered by the said engineer clerk or secretary in any court of competent jurisdiction.

For protection of Darlington Corporation.

17. If and so long as there shall be in force any agreement between the Board and any local authority company or person for the supply of water under the authority of the section of this Act whereof the marginal note is "Contracts for supplying water in bulk" the Board shall maintain in good condition to the satisfaction of the mayor aldermen and burgesses of the borough of Darlington (hereinafter referred to

as "the corporation") or their engineer and without obstruction a communication from the north-eastern corner of the northernmost storage tank at the pumping station of the Board at Broken Scar to the northernmost subsiding tank at the pumping station of the corporation at Tees Cottage by means of the cast-iron pipe constructed by them in pursuance of section 19 of the Stockton and Middlesbrough Waterworks Act 1890 and the Board shall if and where necessary make good such pipe and shall insert therein and maintain a proper valve to which the servants of the corporation authorised by them in that behalf shall have free access at all times and it shall be lawful for the corporation by means of such pipe and valve at all times when necessary (owing to causes other than accident to the pumping machinery or other works of the corporation) for keeping up the supply of their district to draw water from the said storage tank without let or hindrance and without charge therefor and the Board shall keep the said storage tank filled with water to the level of the overflow sill whenever and so long as the corporation require to draw water therefrom for keeping up such supply Provided that if the said pipe shall prove to be too small the Board shall at their own expense replace it by one sufficiently large for the purpose.

A.D. 1914.

18. The Stockton Corporation may borrow for the purposes hereinafter mentioned on the security of their share of the revenue of the waterworks undertaking and of their borough fund and borough rate such sums as they may require not exceeding the amounts following (that is to say):—

Power to
Stockton
Corporation
to borrow.

- (1) For the purpose (hereinafter referred to as "purpose No. (1)") of the purchase of lands and the completion of authorised and the construction of new reservoirs filters conduits and works connected therewith and for workshops and workmen's houses and for providing the money payable by the Board under the agreement set forth in the Schedule to this Act any sum not exceeding thirty-six thousand one hundred and three pounds:
- (2) For the purpose (hereinafter referred to as "purpose No. (2)") of defraying their proportion of the costs charges and expenses preliminary to and of and incidental to the promotion and obtaining of this Act the sum required.

A.D. 1914.

Power to
Middles-
brough
Corporation
to borrow.

19. The Middlesbrough Corporation may borrow for the purposes hereinafter mentioned on the security of their share of the revenue of the waterworks undertaking and of their borough fund and borough rate such sums as they may require not exceeding the amounts following (that is to say):—

For purpose No. (1) any sum not exceeding forty-three thousand three hundred and twenty-four pounds:

For purpose No. (2) the sum required.

Power to
Thornaby
Corporation
to borrow.

20. The Thornaby-on-Tees Corporation may borrow for the purposes hereinafter mentioned on the security of their share of the revenue of the waterworks undertaking and of their district fund and general district rate and of their borough fund and borough rate such sums as they may require not exceeding the amounts following (that is to say):—

For purpose No. (1) any sum not exceeding seven thousand two hundred and twenty pounds:

For purpose No. (2) the sum required.

Periods for
repayment of
moneys
borrowed.

21. The Corporations of Stockton Middlesbrough and Thornaby-on-Tees shall pay off all moneys borrowed by them respectively under this Act within the respective periods (hereinafter referred to as “the prescribed period”) following (that is to say):—

As to moneys borrowed for purpose No. (1) within sixty years from the expiration of the financial year in which the same were respectively borrowed except that all moneys borrowed for the construction of Conduits Nos. 9 and 10 authorised by the Act of 1890 shall be repaid within forty years from the expiration of the financial year in which the same were respectively borrowed:

As to moneys borrowed for purpose No. (2) within five years from the commencement of this Act.

Application
of provisions
of Act of
1907.

22. The following sections of the Act of 1907 shall with the necessary modifications extend and apply to the borrowing of moneys by this Act authorised to be borrowed as though the authority to borrow the same had been conferred by that Act (that is to say):—

Section 79 Provisions of Public Health Act 1875 as to mortgages to apply;

Section 80 Mode of payment off of money borrowed;

Section 81 Sinking fund;

A.D. 1914.

- Section 82 Protection of lender from inquiry ;
- Section 83 Corporations not to regard trusts ;
- Section 84 Appointment of receiver ;
- Section 85 Power to re-borrow ;
- Section 86 Annual return to Local Government Board ;
- Section 87 Application of money borrowed ;
- Section 96 Inquiries by Local Government Board.

23. Nothing in this Act affects prejudicially any estate Crown
 right power privilege or exemption of the Crown and in rights.
 particular nothing herein contained authorises the Board or any
 of the corporations to take use or in any manner interfere with
 any land or hereditaments or any rights of whatsoever description
 belonging to His Majesty in right of His Crown and under the
 management of the Commissioners of Woods without the
 consent in writing of the Commissioners of Woods on behalf of
 His Majesty first had and obtained for that purpose (which
 consent the said Commissioners are hereby authorised to give).

24. The costs charges and expenses preliminary and of Costs of Act.
 and incidental to preparing obtaining and passing this Act as
 taxed by the taxing officer of the House of Lords or House of
 Commons shall in the first instance be paid by the Board out
 of the common fund and shall be repaid thereto by the
 corporations of Stockton Middlesbrough and Thornaby-on-Tees in
 the proportions in which they are respectively interested in the
 water undertaking out of moneys to be borrowed by them
 under this Act.

A.D. 1914.

The SCHEDULE referred to in the foregoing Act.

MEMORANDUM OF AGREEMENT made the ninth day of April one thousand nine hundred and fourteen between ARTHUR JOHN DORMAN of Grey Towers in the north riding of the county of York Esquire (hereinafter referred to as "Mr. Dorman") of the one part and the TEES VALLEY WATER BOARD (hereinafter called "the Board") of the other part.

WHEREAS a Bill is now pending in the House of Commons to authorise the Board to (amongst other things) construct additional waterworks and extend the limits of supply of the Board:

And whereas Mr. Dorman has lodged a petition against the said Bill on the grounds appearing in the said petition:

And whereas the parties hereto have come to the agreement hereinafter appearing:

Now it is hereby agreed between Mr. Dorman and the Board as follows:—

1. Mr. Dorman will forthwith withdraw the said petition.
2. The Board will immediately on the passing into an Act of the said Bill including powers of constructing the works Nos. 2 3 4 and 5 described in the clause thereof of which the marginal note is "Power to make works" and the clause whereof the marginal note is "Extension of limits for supply of water" pay to Mr. Dorman the sum of two thousand five hundred pounds.
3. In consideration of such payment Mr. Dorman will as soon as the Board are in a position to supply water from the works proposed by their said Bill to the houses on the land laid out for building purposes by Mr. Dorman and known as the Marton Moor Estate near to Nunthorpe Station hand over and do all necessary acts to vest in the Board all the existing water pipes valves hydrants and meters fixed or laid in the public highway between Marton Moor Farmstead and Nunthorpe Railway Station and in the streets and roads laid out for building purposes near that railway station and will cease to supply water to the existing houses in the said streets and roads and fronting on the said highway between the said Marton Moor Farmstead and Nunthorpe Railway Station And further Mr. Dorman will not after the Board are in a position to supply as aforesaid supply any houses that may hereafter be built in the said streets and roads and fronting the said highway as aforesaid or in any extension

of the said streets and roads or on any land adjoining thereto or to the said highway or any other land which may hereafter be laid out for building purposes by Mr. Dorman. A.D. 1914.
—

4. The cost of any extensions or additions to the said existing water pipes valves hydrants and meters so fixed and laid as aforesaid that may before the Board are in a position to supply as aforesaid become necessary for the supply of water to additional houses and erections that may be built on the said land or any adjoining land or on any land laid out for building purposes shall be reimbursed by the Board to Mr. Dorman such extensions and additions to be made under the direction and to the satisfaction of the engineer to the Board.

5. Mr. Dorman shall be entitled to the revenue derived from the said water supply and any extension thereof until it is taken over by the Board as above provided for.

6. Nothing herein contained shall prevent Mr. Dorman from supplying water from his present source of supply or otherwise and by means of pipes not taken over by the Board to the mansion house called "Grey Towers" to Nunthorpe Hall to the dwelling-house called "Rye Hills" now occupied by Mr. Charles Dorman or to any of his tenants in the old village of Nunthorpe to the Nunthorpe School near to Grey Towers lodge gates or to any church that may be erected on land near thereto or to any farm tenants on Mr. Dorman's estate (by which is meant the agricultural land belonging to Mr. Dorman which lies within the extended limits of supply mentioned in clause 9 of the said Bill or any other extended limits of supply which may be contained in the said Act) or to any farmsteads farmhouses dwelling-houses cottages or fields belonging to Mr. Dorman and now or hereafter on the said estate and from laying maintaining or renewing water pipes or other appliances for those purposes and the Board shall do nothing without the consent in writing of Mr. Dorman to interfere or compete with the right of Mr. Dorman to supply the aforesaid places and Mr. Dorman shall not compete with the Board in supplying water to any dwelling-houses or erections on any land which Mr. Dorman may hereafter lay out for building purposes.

7. All necessary work for disconnection of the pipes hereby agreed to be transferred from the present water supply of Mr. Dorman to the proposed water supply of the Board shall be carried out by and at the expense of the Board and so as not to interfere with Mr. Dorman's water supply to any other parts of his estate to which he may be at liberty to supply water.

8. All alterations necessary to the carrying out of this agreement shall be made by the Board in the said Bill.

A.D. 1914.
—

9. In case the said Bill (including the powers and extension aforesaid) or any new or substituted Bill (including such powers and extension as aforesaid) shall not pass into an Act before the first day of July one thousand nine hundred and fifteen this agreement shall be void.

10. This agreement is made subject to such alterations as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration it shall be competent to either party to withdraw the same.

As witness the hand of the said Mr. Dorman and the common seal of the Board the day and year first above written.

The common seal of the Tees Valley Water }
Board was hereto affixed in the presence of }

I.S.

HUGH WILSON Clerk to the Tees Valley Water Board.

Signed by the said Arthur John Dorman }
in the presence of } A. J. DORMAN.

HENRY J. PARRINGTON Solicitor
Middlesbrough.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23 FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.